

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

W.P. No.26795/2025

Lahore Development Authority **Versus** Syed Ashraf Ali, etc.

S.No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary
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20.04.2026 M/s Ch. Waseem Arif Bhaddar and Ahsan
Bangash, Advocates for petitioner(s).
Mr. Muhammad Fayyaz Ch. Advocate for
respondents.

 This and connected constitutional petitions, bearing W.P. Nos.53899, 53910 and 53919 of 2025, though all are directed against separate orders, but they raise common questions / issues. In all constitutional petitions petitioner Authority had challenged orders of dismissal of applications, filed under section 12(2) of Civil Procedure Code 1908 (“**the Code**”), against *ex parte* judgments, by Trial court, which were affirmed upon dismissal of Authority’s revision petitions.

2. It is notable that in previous round of litigation, this Court, vide order dated 02.10.2023, allowed constitutional petition bearing W.P. No.9888/2021 and connected petitions and remanded matter to the Trial court for adjudication of the applications. Trial court framed issues and recorded evidence, which concluded upon dismissing application(s).

Primary controversy was that whether ex parte judgment obtained by respondent was procured through misrepresentation, fraud and is same without jurisdiction – [This defines the scope of jurisdiction under section 12(2) of the Code].

3. Primary ground pleaded in the application(s) to question validity of *ex parte* judgment(s), besides attributing allegation of procuring *ex parte* judgment(s) covertly, was that alleged exemption letter(s) produced for claiming interest under agreement(s) to sell qua plots in question, were bogus and never issued by the Authority – in petition at hand exemption letter was identified as [Exh.P-2] in *ex parte* judgment. Case of the respondent was that original exemptee, acting through special attorney, had negotiated agreement to sell and enforcement thereof was sought through suit(s) for specific performance, which were decreed *ex parte*.

4. Learned counsel for respondent(s) defended impugned orders.

5. With the assistance of learned counsel, I have examined the order(s) assailed. Seemingly, trial court proceeded to determine the legality-cum-genuineness of exemption letter(s), claimed as bogus by the petitioner Authority. Question of genuineness of exemption letters is pivotal controversy - there seems no cavil with this fact. But moot question for determination in present proceedings is that whether the court(s) were exercising general or specific jurisdiction and whether issue of genuineness of exemption letter(s) is a triable issue in suit proceedings or under section 12(2) jurisdiction. If the court could determine and decide qua authenticity / genuineness of exemption letter; then what would be the scope of proceedings once court reached conclusion that decree under challenge was procured through fraud and application(s) is accepted – whether in such scenario question of

genuineness of a disputed document would be re-adjudicated [whether such re-adjudication would be permissible in wake of *doctrine of res judicata*.] I have examined the context of the issues framed, which are confined to the extent of determination of the question whether *ex parte* judgment(s) are liable to be declared ineffective under section 12(2) jurisdiction.

6. Learned counsel for respondent(s) argues that petitioner Authority had knowledge of *ex parte* judgment, which deliberately avoided appearance and in these circumstances, there was no occasion to allow applications and courts rightly dismissed applications. Submission is misconceived. there is marked distinction between jurisdiction under Order IX Rule 13 of the Code and section 12(2) jurisdiction.

7. I have examined the orders impugned wherein court misconstrued scope and extent of its jurisdiction and treated adjudication of application akin to a trial in suit proceedings. Revisional court also failed to appreciate scope of proceedings under section 12(2) jurisdiction, wherein courts are called upon to identify vice(s) qua challenged judgments, in the context of section 12(2) jurisdiction, and same would not embark upon determination of disputed questions of facts and law, relating to genuineness of disputed document in the context of cases at hand.

Simply explained; procuring of a judgment on the basis of alleged forged document, when courts had passed judgements on the basis of representations made qua said document, amount to exercising misrepresentation and

fraud, which is subject matter of challenge under section 12(2) jurisdiction but delving into or determination of question of genuineness of the document or converse thereof, tantamount to travel beyond section 12(2) jurisdiction – later being the jurisdiction of court that passed judgment subject matter of challenge under Section 12(2) jurisdiction.

8. In view of the above, I conclude that petitioner Authority has successfully made out case for allowing application under section 12(2) of the Code, and against *ex parte* judgments.

9. In these circumstances, this and connected constitutional petitions are **allowed**, order(s) 10.12.2024 and 30.05.2024 are set aside, application(s) under Section 12(2) of the Code are accepted by setting-aside of *ex parte* judgment(s). Civil suits instituted by respondent(s) shall be deemed pending before the Trial court, wherein court shall direct for completion of pleadings, frame issues and record evidence and decide lis afresh without being influenced by findings previously recorded in impugned orders with respect to the genuineness of exemption letter(s) and conclusions drawn on the basis thereof. No order as to costs.

(ASIM HAFEEZ)
JUDGE

Imran/*

Approved for reporting.

Judge